

██████████ vs The State Of Madhya Pradesh on 7 January, 2026

NEUTRAL CITATION NO. ██████████

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE ██████████
ON THE 7th OF JANUARY, 2026
MISC. CRIMINAL CASE No. ██████████ of 2025
██████████
Versus
THE STATE OF MADHYA PRADESH
Appearance:
Shri ██████████ Counsel for applicant.
Shri ██████████ GA for State.

ORDER

This is the application filed on behalf of the applicant under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) for grant of anticipatory bail apprehending his arrest in relation to ██████████ registered at Police Station - Majhgavan, District Jabalpur (M.P.) for the offence punishable under sections 316(2), 316(4), 316(5), 318(2), 318(4), 338, 336(3), 340(2), 61(2) of BNS 2023 and under Sections 3, 7 of (M.P). Essential Commodities Act.

2. As per the prosecution story, the allegation against the present applicant, who is the computer operator in the society, in collusion with the Society issue center, concerned officer, traders and commission agents, misappropriated 12,657 quintal paddy having minimum support price of Rs.2,91,11,100/-. On the basis of aforesaid allegation, F.I.R was registered.

3. Learned counsel for the applicant submitted that applicant is NEUTRAL CITATION NO. ██████████ 2 ██████████ innocent. He has been falsely implicated in the said offence. He has relied on the order dated 19.12.2025 passed by the Apex Court in same set of matter, of course, in different F.I.R in S.L.P(Cr.) No.15170/2025 and has submitted that facts of the present case are almost identical. There is no need of custodial interrogation of present applicant. The conclusion of trial will take considerable time. In these circumstances, applicant may be granted anticipatory bail.

4. On the other hand, learned counsel for the State has fairly submitted that the Hon'ble Supreme Court has passed the order dated 19.12.2025 in ██████████ in the cases relating to Samity Prabhandhak (Society Manager).

5. The Hon'ble Apex Court in the case of ██████████ Vs. State of Madhya Pradesh SLP (Cr.) No.15170/2025 dated 19.12.2025 has passed the following order :-

"1. Heard learned counsel for the parties.

2. In pursuance of the orders of this court, the petitioners have been appearing in the investigation and are cooperating with the investigating officer (I.O).

3. In view of the aforesaid, the interim orders dated 08.09.2025, 17.10.2025 and 16.10.2025 are made absolute and it is provided that no coercive action shall be taken against the petitioners, if they continue to co-operate and participate in the investigation.

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4. In the event of arrest, the petitioners shall be enlarged on bail on such terms and conditions as may be imposed by the Arresting Officer.

5. The Special Leave Petitions stand disposed of. Pending applications(s), if any, shall also stand disposed of."

6. Considering the aforesaid, I am of the view that the same benefit should be granted to the present applicant on the terms and conditions mentioned in the above order.

7. Looking to the facts and circumstances of the case, without commenting anything on the merits of the case, the anticipatory bail application filed by the applicant is allowed. It is directed that if the applicant is arrested by the police then he shall be released on bail on his furnishing a personal bond in the sum of Rs.50,000/- (Rs. Fifty Thousand only) with one solvent surety of the like amount to the satisfaction of the Investigating Officer/Arresting Authority.

8. Applicant shall abide by the following conditions under Section 480 (2) of Cr.P.C :-

(a) Applicant shall make himself available for interrogation by a Police Officer as and when required;

(b) He shall not, directly or indirectly, make any inducement, threat or promise to complainant or witnesses;

(c) He shall not leave India without the previous permission of the Court;

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(d) He shall not commit similar offence, of which, he is accused or suspected.

9. However, it is being made clear that in case of bail jump and in violation of any of conditions imposed herein above, this order shall become ineffective and Investigation Officer/Trial Court shall be at liberty to proceed against the applicant as per law.

Certified copy as per rules.

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